

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**NOTICE OF MOTION AND MOTION
FOR LEAVE TO FILE SECOND
AMENDED COMPLAINT**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on May 12, 2026, at 9:00 a.m. or as soon thereafter as the matter may be heard in Department 301 of this Court, located at 400 McAllister Street, San Francisco,

1 California 94102, before the Honorable Garrett L. Wong, Plaintiff Franciscus Dylan Rosario will
2 and hereby does move for an order granting leave to file the Second Amended Complaint attached
3 as Exhibit 1 to the concurrently filed Declaration of Franciscus Dylan Rosario.

4 **STATUTORY BASIS**

5 This motion is made pursuant to Code of Civil Procedure sections 472, 473(a)(1), and 576, and
6 California Rules of Court, rule 3.1324(a) and (b).

7 **GROUND FOR THE MOTION**

8 This motion is based on the following grounds: * Newly-discovered evidence, specifically defense
9 counsel's April 16, 2025 admission (Trial Day 7) regarding the "provided by Dolan" origins of
10 critical trial exhibits; * Accrual of the underlying fraud claims on discovery in January 2025 (Code
11 of Civil Procedure section 338(d)); * Refinement of the extrinsic-fraud gravamen, stripping trial-
12 focused allegations and isolating pre-adjudicative concealment and deception; * The addition of
13 agency liability allegations identifying CSAA Insurance Exchange as the institutional principal
14 directing and ratifying the litigation conduct; * The addition of a Seventh Cause of Action for
15 constructive fraud (Civ. Code § 1573) and refinement of the Fourth Cause to plead civil conspiracy
16 as a joint-liability theory under Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7
17 Cal.4th 503; and * The complete absence of prejudice to Defendants, as no trial date has been set
18 and the action remains in its early stages.

19 **RELIEF REQUESTED**

20 Plaintiff respectfully requests that the Court: 1. Enter an order granting Plaintiff leave to file the
21 Second Amended Complaint; 2. Direct the clerk to deem the Second Amended Complaint filed
22 and served as of the date of the order; and 3. Set a responsive-pleading deadline of 30 days under
23 Code of Civil Procedure section 471.5(a).

24 This motion is based upon this Notice of Motion, the concurrently filed Memorandum of Points
25 and Authorities, the Declaration of Franciscus Dylan Rosario, the Request for Judicial Notice, the
26 [PROPOSED] Order Granting Leave, the pleadings and papers on file in this action, and upon such
27 other matters as may be presented to the Court at the time of the hearing.

1 Dated: _____, 2026
2 _____

3 FRANCISCUS DYLAN ROSARIO
4

Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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